

COMMERCIAL BRIDGE LOAN AGREEMENT

Dated: As of February 28, 2024

CITYVIEW ACQUISITIONS LLC

("Borrower")

and

BRIDGEPOINT CAPITAL PARTNERS, LP

("Lender")

\$9,200,000.00 BRIDGE LOAN

Secured by Commercial Office Property

488 Market Street, San Francisco, California 94105

ARTICLE I — DEFINITIONS

"Exit Strategy" means Borrower's plan to repay the Loan, which is either (i) refinancing with permanent financing or (ii) sale of the Property, in either case by the Maturity Date.

"Extension Fee" means 1.00% of the outstanding Loan balance per each 6-month Extension Period.

"Extension Period" means a period of 6 calendar months, not to exceed two (2) such periods.

"Exit Fee" means 1.50% of the original Loan Amount (\$138,000), due upon repayment of the Loan in full.

"Guarantor" means David L. Cityview, individually.

"Initial Maturity Date" means February 28, 2025.

"Interest Rate" means 9.75% per annum (fixed), calculated on a 360-day year.

"Loan Amount" means \$9,200,000.00 (representing approximately 70% of the Purchase Price).

"Origination Fee" means 2.00% of the Loan Amount (\$184,000), due at closing.

"Property" means the commercial office building at 488 Market Street, San Francisco, CA 94105, described in Exhibit A.

"Purchase Price" means \$13,150,000.00, being the acquisition cost of the Property.

"Stabilization" means achieving occupancy of at least 90% of the Property's net rentable area under executed leases.

ARTICLE II — CONDITIONS PRECEDENT

Conditions to Lender's obligation to fund include:

- (a) Executed Loan Documents, including this Agreement, Promissory Note, Deed of Trust, Assignment of Leases and Rents, and Personal Guaranty.
- (b) Title insurance policy insuring Lender's Deed of Trust as a first-priority lien, subject only to Permitted Exceptions.
- (c) Current ALTA survey of the Property.
- (d) Phase I Environmental Assessment acceptable to Lender.
- (e) Appraisal showing as-is value of not less than \$13,150,000.

- (f) Evidence of Borrower's equity contribution of not less than \$3,950,000.
- (g) Rent roll, copies of all leases, and estoppel certificates from all tenants occupying 5% or more of net rentable area.
- (h) Evidence of property, liability and rent-loss insurance naming Lender as additional insured and loss payee.
- (i) Payment of Origination Fee and all other costs and expenses due at closing.

ARTICLE III — LOAN TERMS

Section 3.1 The Loan. Lender agrees to advance \$9,200,000.00 in a single disbursement at closing to fund Borrower's acquisition of the Property. The Loan is interest-only; no principal amortization is required prior to maturity.

Section 3.2 Interest. Interest accrues at 9.75% per annum on the outstanding principal balance. Interest is payable monthly on the 1st of each month. From and after an Event of Default (or after the Maturity Date), interest accrues at the Default Rate of 14.75% per annum.

Section 3.3 Maturity; Extension. The Loan matures on the Initial Maturity Date. Borrower may request up to two (2) 6-month Extension Periods, each subject to: (i) no Event of Default; (ii) payment of the Extension Fee; (iii) Borrower's delivery of an updated Exit Strategy; and (iv) Lender's approval, in its sole discretion. The Maximum Extended Maturity Date is February 28, 2026.

Section 3.4 Fees. (a) Origination Fee: 2.00% (\$184,000), due at closing. (b) Exit Fee: 1.50% (\$138,000), due upon full repayment. (c) Extension Fee: 1.00% of outstanding balance per Extension Period. (d) Default Rate Interest as described above.

Section 3.5 Prepayment. Borrower may prepay the Loan in full at any time upon 5 Business Days' notice, without penalty, provided Borrower simultaneously pays the Exit Fee and all accrued interest and other Obligations.

Section 3.6 Application of Payments. Payments shall be applied: first, to accrued interest; second, to fees and expenses; third, to principal.

ARTICLE IV — PROPERTY COVENANTS

Section 4.1 Leasing. Borrower shall use commercially reasonable efforts to achieve Stabilization by the Initial Maturity Date. New leases for space exceeding 5,000 SF require Lender's prior written approval.

Section 4.2 Management. The Property shall be managed by a professional property manager approved by Lender. Any change in property manager requires Lender's prior consent.

Section 4.3 Cash Management. Borrower shall establish a deposit account with Lender (or Lender-approved institution) into which all rents and income from the Property shall be deposited. Upon an Event of Default, Lender may direct such funds to satisfy Obligations.

Section 4.4 Capital Expenditures. Borrower shall fund a capital expenditure reserve of \$50,000, deposited with Lender at closing. Disbursements from such reserve require Lender's approval.

Section 4.5 Reporting. Borrower shall deliver to Lender: (a) monthly rent rolls within 15 days of month-end; (b) quarterly property operating statements within 30 days of quarter-end; (c) prompt notice of any tenant default, lease termination or other material property event.

ARTICLE V — REPRESENTATIONS AND GENERAL COVENANTS

Section 5.1 Representations. Borrower represents: (a) it is duly organized and authorized; (b) there are no undisclosed liens on the Property; (c) no pending litigation; (d) all rent rolls and lease information provided are accurate; (e) the Property complies with all applicable laws and zoning.

Section 5.2 Prohibitions. Without Lender's prior consent: (a) no further financing or encumbrances on the Property; (b) no transfer or sale of the Property (other than in connection with the Exit Strategy); (c) no change in Borrower's ownership or control.

ARTICLE VI — EVENTS OF DEFAULT AND REMEDIES

Events of Default: (a) failure to pay any amount within 5 days of due date; (b) breach of covenant not cured within 10 days (monetary) or 30 days (non-monetary); (c) any misrepresentation; (d) bankruptcy or insolvency; (e) any transfer of the Property without consent; (f) abandonment of the Property; (g) failure to maintain insurance.

Remedies: Lender may (i) accelerate all Obligations; (ii) exercise rights under the Deed of Trust, including non-judicial foreclosure under California law; (iii) appoint a receiver; (iv) exercise all rights of a secured party. All remedies are cumulative.

ARTICLE VII — GENERAL PROVISIONS

Governing Law: California. **Jury Trial Waiver:** Both parties irrevocably waive jury trial rights. **Notices:** Borrower: 700 Montgomery Street, Suite 800, San Francisco, CA 94111; Lender: 100 California Street, Suite 1500, San Francisco, CA 94111. **Recourse:** This is a full-recourse loan; Borrower and Guarantor are personally liable for all Obligations. **Anti-Money Laundering:** Borrower confirms compliance with all applicable AML and OFAC regulations.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first set forth above.

CITYVIEW ACQUISITIONS LLC
a California limited liability company

BRIDGEPOINT CAPITAL PARTNERS, LP
a California limited partnership

By: _____

By: _____

Name: _____

Name: _____

Title: _____

Title: _____